

ALKERMES, INC. et al v. APOTEX CORP. et al

Plaintiff:	ALKERMES, INC. and ALKERMES PHARMA IRELAND LIMITED
Defendant:	APOTEX CORP. and APOTEX INC.
Case Number:	1:2026cv07358
Filed:	June 18, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Ethan A Hougah
Referring Judge:	Karen M Williams
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

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Date Filed	Document Text
July 24, 2026	***Civil Case Terminated. (adc,)
July 24, 2026	Magistrate Judge Ethan A. Hougah added. Magistrate Judge Ann Marie Donio no longer assigned to case. (gxh)
July 23, 2026	Filing 11 CONSOLIDATION ORDER; that Civil Action Nos. 25-14977 and 26-7358 are consolidated for all purposes. Signed by Judge Karen M. Williams on 7/23/2026. (adc,)
July 22, 2026	Filing 10 Letter from Alkermes to the Hon. Ann Marie Donio, U.S.M.J.. (Attachments: #1 Text of Proposed Order)(SULLIVAN, SARAH)
July 7,	Filing 9 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of

Date Filed	Document Text
2026	ALKERMES PHARMA IRELAND LIMITED, ALKERMES, INC. (CALLO, ALEXANDER)
July 6, 2026	Filing 8 Order Initial Conference set for 8/4/2026 at 12:00 PM in Camden - Courtroom 3A before Magistrate Judge Ann Marie Donio. Signed by Magistrate Judge Ann Marie Donio on 7/6/2026. (dmr)
July 2, 2026	Filing 7 Corporate Disclosure Statement by APOTEX CORP., APOTEX INC. identifying Apotex Health Corp. as Corporate Parent.. (EKINER, KAAN)
July 2, 2026	Filing 6 ANSWER to Complaint by APOTEX CORP., APOTEX INC..(EKINER, KAAN)
June 24, 2026	Filing 5 NOTICE of Appearance by SARAH ANN SULLIVAN on behalf of ALKERMES PHARMA IRELAND LIMITED, ALKERMES, INC. (SULLIVAN, SARAH)
June 24, 2026	Filing 4 SUMMONS ISSUED as to APOTEX CORP., APOTEX INC.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (dnw)
June 24, 2026	Filing 3 AO120 Patent/Trademark Form filed. (Attachments: #1 See Complaint) (dnw)
June 24, 2026	Notice of Judicial Preferences. #Click here for the Judge's Individual Procedure Requirements. (dnw)
June 18, 2026	Judge Karen M. Williams and Magistrate Judge Ann Marie Donio added. (dmw)
June 18, 2026	Filing 2 Corporate Disclosure Statement by ALKERMES PHARMA IRELAND LIMITED, ALKERMES, INC.. (LIZZA, CHARLES)
June 18, 2026	Filing 1 COMPLAINT against APOTEX CORP., APOTEX INC. (Filing and Admin fee \$ 405 receipt number ANJDC-17557872) , Related Case Selected, filed by ALKERMES, INC., ALKERMES PHARMA IRELAND LIMITED. (Attachments: #1 Civil Cover Sheet)(LIZZA, CHARLES)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: [Alkermes, Inc.](#) (Pennsylvania) and [Alkermes Pharma Ireland Limited](#) (Ireland)

Defendant: [Apotex Corp.](#) (Delaware) and Apotex Inc. (Canada)

Plaintiff's Counsel: [Saul Ewing LLP](#)

Case Identification: [1:26-cv-07358](#), D.N.J., 06/18/2026

Venue Allegations: Venue is alleged to be proper in the District of New Jersey because Defendant Apotex Corp. has a regular and established place of business in the state, has consented to venue in a related action, and engages in substantial business there. Venue is alleged as proper for Apotex Inc. as a foreign corporation subject to personal jurisdiction in the district.

Core Dispute: Plaintiff alleges that Defendant's filing of an Abbreviated New Drug Application (ANDA) to market a generic version of LYBALVI® (olanzapine/samidorphan) constitutes an act of infringement of eleven patents covering methods of treating antipsychotic-induced weight gain and related technologies.

Technical Context: The technology involves a combination pharmaceutical product designed to provide the therapeutic benefits of an atypical antipsychotic (olanzapine) while mitigating the common and significant side effect of weight gain by using an opioid receptor antagonist (samidorphan).

Key Procedural History: The complaint notes that this action is related to a pending consolidated action in the same court ([Alkermes, Inc. v. Teva Pharmaceuticals, Inc., et al.](#), No. 25-cv-14685), which also involves Defendants and their ANDA for a generic LYBALVI® product, but concerns a different set of patents. This current suit arises from a subsequent Paragraph IV certification letter received by Plaintiffs.

Case Timeline

Date

Event

2009-12-04 Earliest Priority Date for ['848](#) Patent

2010-08-23 Earliest Priority Date for ['960](#), ['977](#), ['235](#), ['054](#), ['785](#), ['541](#), ['425](#), ['166](#), ['805](#), ['035](#) Patents

2014-07-15 U.S. Patent No. 8,778,960 Issued

2015-09-01 U.S. Patent No. 9,119,848 Issued

2015-09-08 U.S. Patent No. 9,126,977 Issued

2016-12-13 U.S. Patent No. 9,517,235 Issued

2019-05-28 U.S. Patent No. 10,300,054 Issued

2020-07-21 U.S. Patent No. 10,716,785 Issued

2021-05-28 FDA Approval of LYBALVI® (NDA No. 213378)

Date	Event
2021-11-30	U.S. Patent No. 11,185,541 Issued
2022-02-08	U.S. Patent No. 11,241,425 Issued
2022-06-07	U.S. Patent No. 11,351,166 Issued
2023-10-24	U.S. Patent No. 11,793,805 Issued
2025-01-14	U.S. Patent No. 12,194,035 Issued
2025-07-15	Alkermes receives first notice letter regarding ANDA No. 220455
2025-08-14	Apotex produces ANDA No. 220455 to Plaintiffs in Related Action
2026-05-25	Alkermes receives subsequent Paragraph IV notice letter for Patents-in-Suit
2026-06-18	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 8,778,960 - "Methods for Treating Antipsychotic-Induced Weight Gain"

Patent Identification: U.S. Patent No. 8,778,960, "Methods for Treating Antipsychotic-Induced Weight Gain," issued July 15, 2014 **Compl. ¶32**

The Invention Explained

Problem Addressed: Atypical antipsychotic drugs such as olanzapine are highly effective for treating psychotic disorders but frequently cause significant weight gain, which can lead to patient non-compliance, obesity, and related health problems like diabetes **Compl. ¶66 '960 Patent, col. 1:45-54**

The Patented Solution: The invention is a method to reduce this drug-induced weight gain by co-administering an opioid modulator, specifically a compound of Formula I (samidorphan), with the atypical antipsychotic **'960 Patent, abstract '960 Patent, col. 2:6-11** This co-administration is intended to suppress food intake and lower circulating ghrelin levels that are elevated by the antipsychotic drug **'960 Patent, col. 2:12-19**

Technical Importance: This approach allows patients to receive the benefits of atypical antipsychotic therapy while mitigating one of its most significant and medically dangerous side effects, potentially improving both treatment adherence and long-term health outcomes **Compl. ¶67**

Key Claims at a Glance

The complaint does not identify specific asserted claims but makes general allegations of infringement of one or more claims **Compl. ¶82**

- Independent claim 1 is the sole independent claim in the '960 patent. Its essential elements are:
- A method of reducing antipsychotic induced weight gain
- comprising administering to a patient in need of treatment an effective amount of a compound of formula [samidorphan] or a pharmaceutically acceptable salt thereof;
- wherein said antipsychotic is olanzapine.

U.S. Patent No. 9,119,848 - "Morphinan Derivatives for the Treatment of Drug Overdose"

□ **Patent Identification:** U.S. Patent No. 9,119,848, "Morphinan Derivatives for the Treatment of Drug Overdose," issued September 1, 2015 **Compl. ¶35**

The Invention Explained

- **Problem Addressed:** The standard treatment for opioid overdose, naloxone, has a short duration of action. This creates a risk of "renarcotisation" where the overdose effects return after the naloxone wears off, often requiring prolonged hospitalization and repeated dosing to ensure patient safety **'848 Patent, col. 2:1-16**
- **The Patented Solution:** The invention provides for the use of specific carboxamide substituted morphinans, such as samidorphan (Compound 1), which exhibit a longer duration of action (e.g., 24-48 hours) compared to naloxone for treating drug overdose **'848 Patent, col. 2:18-29**
- **Technical Importance:** A longer-acting opioid antagonist could simplify overdose treatment, reduce the need for extended hospitalization for monitoring, and lower the risk of patient harm from renarcotisation after discharge **'848 Patent, col. 2:12-16**

Key Claims at a Glance

- The complaint does not identify specific asserted claims but makes general allegations of infringement **Compl. ¶104**
- Independent claim 1 is the sole independent claim in the '848 patent. Its essential elements are:
- A method of treating opioid toxicity or overdose in a subject in need thereof
- comprising administering L-malate salt of Compound-1 [samidorphan]
- wherein said opioid toxicity or overdose is resulting from an opioid drug
- administered to a non-dependent patient.

Multi-Patent Capsule

□ **Patent Identification:** U.S. Patent No. 9,126,977, "Methods for Treating Antipsychotic-Induced Weight Gain," issued September 8, 2015 **Compl. ¶38**

- **Technology Synopsis:** The patent describes methods for reducing weight gain associated with atypical antipsychotics like olanzapine by administering an opioid modulator (samidorphan) **'977 Patent, abstract** It also discloses compositions containing both an atypical antipsychotic and the opioid modulator **'977 Patent, claim 10**
- **Asserted Claims:** The complaint does not specify claims **Compl. ¶¶123-144**
- **Accused Features:** Apotex's proposed generic product, which is a co-formulation of olanzapine and samidorphan, is alleged to infringe (Compl. ¶¶69; Compl. 75).

Patent Identification: U.S. Patent No. 9,517,235, "Methods for Treating Antipsychotic-Induced Weight Gain," issued December 13, 2016 [Compl. ¶41](#)

Technology Synopsis: The patent claims methods of reducing diseases or disorders associated with the adverse metabolic profile of olanzapine, such as obesity and diabetes, by administering samidorphan ['235 Patent, claim 1](#) ['235 Patent, abstract](#) It also claims methods of lowering circulating ghrelin levels by administering samidorphan ['235 Patent, claim 7](#)

Asserted Claims: The complaint does not specify claims [Compl. ¶¶145-166](#)

Accused Features: Apotex's proposed generic product containing olanzapine and samidorphan is alleged to practice the claimed methods (Compl. ¶¶69; Compl. 75).

Patent Identification: U.S. Patent No. 10,300,054, "Methods for Treating Antipsychotic-Induced Weight Gain," issued May 28, 2019 [Compl. ¶44](#)

Technology Synopsis: The patent claims compositions comprising olanzapine and samidorphan, and methods of treating disorders like schizophrenia or bipolar disorder by administering such a composition ['054 Patent, claim 1](#) ['054 Patent, claim 8](#)

Asserted Claims: The complaint does not specify claims [Compl. ¶¶167-188](#)

Accused Features: Apotex's proposed generic product is a composition of olanzapine and samidorphan alleged to be used for the claimed methods (Compl. ¶¶69; Compl. 75).

Patent Identification: U.S. Patent No. 10,716,785, "Methods for Treating Antipsychotic-Induced Weight Gain," issued July 21, 2020 [Compl. ¶47](#)

Technology Synopsis: The patent claims methods of reducing antipsychotic-induced weight gain by administering a composition containing an atypical antipsychotic and samidorphan ['785 Patent, claim 1](#) The claims specify particular patient populations, such as those who have already experienced weight gain from the antipsychotic ['785 Patent, claim 2](#)

Asserted Claims: The complaint does not specify claims [Compl. ¶¶189-210](#)

Accused Features: The administration of Apotex's proposed generic product is alleged to practice the claimed methods (Compl. ¶¶69; Compl. 75).

Patent Identification: U.S. Patent No. 11,185,541, "Methods for Treating Antipsychotic-Induced Weight Gain," issued November 30, 2021 [Compl. ¶50](#)

Technology Synopsis: The patent claims methods of treating schizophrenia by orally administering a daily pharmaceutical composition containing olanzapine and 10 mg of samidorphan ['541 Patent, claim 1](#)

Asserted Claims: The complaint does not specify claims [Compl. ¶¶211-232](#)

Accused Features: Apotex's proposed generic product is alleged to be a composition that will be administered according to the claimed method (Compl. ¶¶69; Compl. 75).

Patent Identification: U.S. Patent No. 11,241,425, "Composition for Treating Mental Illness," issued February 8, 2022 [Compl. ¶53](#)

Technology Synopsis: The patent claims methods of reducing weight gain associated with olanzapine administration by orally administering a composition containing olanzapine and 10 mg of samidorphan ['425 Patent, claim 1](#) ['425 Patent, claim 9](#)

Asserted Claims: The complaint does not specify claims [Compl. ¶¶233-254](#)

Accused Features: Apotex's proposed generic product containing olanzapine and samidorphan is alleged to be the composition used in the claimed methods (Compl. ¶¶69; Compl. 75).

Patent Identification:	U.S. Patent No. 11,351,166, "Methods for Treating Antipsychotic-Induced Weight Gain," issued June 7, 2022	Compl. ¶56
Technology Synopsis:	The patent claims a method for treating a human patient suffering from bipolar disorder or schizophrenia by co-administering olanzapine and samidorphan to mitigate weight gain '166 Patent, claim 1	
Asserted Claims:	The complaint does not specify claims Compl. ¶¶255-276	
Accused Features:	Apotex's proposed generic product is a co-formulation of olanzapine and samidorphan alleged to be used for the claimed methods (Compl. ¶¶69; Compl. 75).	
Patent Identification:	U.S. Patent No. 11,793,805, "Methods for Treating Antipsychotic-Induced Weight Gain," issued October 24, 2023	Compl. ¶59
Technology Synopsis:	The patent claims a method for treating schizophrenia where significant weight gain induced by olanzapine is mitigated by the co-administration of samidorphan '805 Patent, claim 8	
Asserted Claims:	The complaint does not specify claims Compl. ¶¶277-298	
Accused Features:	Apotex's proposed generic product, a co-formulation of olanzapine and samidorphan, is alleged to be used to practice the claimed method (Compl. ¶¶69; Compl. 75).	
Patent Identification:	U.S. Patent No. 12,194,035, "Methods for Treating Antipsychotic-Induced Weight Gain," issued January 14, 2025	Compl. ¶62
Technology Synopsis:	The patent claims methods for treating bipolar disorder, or manic/mixed episodes associated with it, by administering a composition of olanzapine and 10 mg of samidorphan '035 Patent, claim 1 '035 Patent, claim 15	
Asserted Claims:	The complaint does not specify claims Compl. ¶¶299-320	
Accused Features:	Apotex's proposed generic product is alleged to be the composition that will be administered according to the claimed methods (Compl. ¶¶69; Compl. 75).	

III. The Accused Instrumentality

Product Identification

Apotex's proposed generic LYBALVI® (olanzapine/samidorphan) tablets, which are the subject of Abbreviated New Drug Application ("ANDA") No. 220455 Compl. ¶10 Compl. ¶72

Functionality and Market Context

The complaint alleges that Apotex's ANDA Product is a combination drug product containing olanzapine, an atypical antipsychotic, and samidorphan, an opioid receptor antagonist Compl. ¶69 It is alleged to have the same active ingredients, dosage form, and strengths as Plaintiffs' branded LYBALVI® product and to be bioequivalent to it Compl. ¶75 The function of the samidorphan component is to counteract metabolic side effects, such as weight gain, caused by the olanzapine component Compl. ¶69 The complaint alleges that Apotex intends to market and sell its ANDA Product in the United States, including in New Jersey, and that it will displace sales of the branded LYBALVI® product Compl. ¶11 Compl. ¶20

No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint does not provide element-by-element infringement allegations. The infringement theory is based on the statutory infringement provision of the Hatch-Waxman Act, where the filing of an ANDA for a generic version of a branded drug is an act of infringement if the generic product will be used in a manner that practices a patented method [Compl. ¶82](#) [Compl. ¶85](#) The allegations rest on the premise that Apotex's ANDA Product is bioequivalent to LYBALVI® and its FDA-approved label will instruct users to perform the patented methods [Compl. ¶75](#) [Compl. ¶85](#)

'960 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of reducing antipsychotic induced weight gain	The complaint alleges that the proposed product label for Apotex's ANDA Product will be substantively identical to that of LYBALVI® and will teach the use of the product, which contains the opioid antagonist samidorphan to mitigate weight gain from olanzapine.	¶85	col. 2:6-11
comprising administering to a patient in need of treatment an effective amount of a compound of formula [samidorphan] or a pharmaceutically acceptable salt thereof	Apotex's ANDA Product is alleged to contain samidorphan and be bioequivalent to LYBALVI®, and its label will instruct administration to patients.	¶75	col. 2:6-11
wherein said antipsychotic is olanzapine.	Apotex's ANDA Product is a combination product containing olanzapine.	¶69; ¶75	col. 2:55-58

Identified Points of Contention:

Scope Questions: The complaint's infringement theory for the '960 patent appears to be a standard application of the Hatch-Waxman Act for a method-of-use patent. The central dispute will likely focus on the validity of the patent and the precise scope of the claims, rather than on a technical mismatch in operation, given the alleged bioequivalence of the generic product [Compl. ¶75](#)

Technical Questions: A key question for the '848 patent, which claims a method for treating opioid overdose, is how Plaintiffs will establish infringement by a product indicated for treating mental illness [Compl. ¶69](#) [Compl. ¶104](#) The complaint does not allege that the proposed generic product is intended for, or that its label will instruct, use for treating opioid overdose. This suggests a potential fundamental mismatch between the claimed method and the accused product's intended use, raising the question of whether any infringement can occur.

V. Key Claim Terms for Construction

❑ **The Term:** "reducing antipsychotic induced weight gain" (from '960 Patent, claim 1)

❑ **Context and Importance:** The entire purpose of the invention is to achieve this "reduction." Practitioners may focus on this term because its definition is critical to determining infringement. The dispute may center on whether any statistically significant reduction is sufficient, or if a specific, clinically meaningful threshold of weight gain mitigation must be met, as suggested by data in the patent specification.

❑ **Intrinsic Evidence for Interpretation:**

❑ **Evidence for a Broader Interpretation:** The specification defines "reducing" as "any indicia of success in the prevention or reduction of weight gain" '960 Patent, col. 8:49-52, which may support an argument that any measurable effect constitutes reduction.

❑ **Evidence for a Narrower Interpretation:** The specification provides specific quantitative examples, such as mitigating a "percentage increase in weight ... by at least 2%, 5%, 10%," and discusses maintaining a "healthful weight range" (BMI between 19 and 25) '960 Patent, col. 8:55-65 '960 Patent, col. 9:5-14 Figure 1 of the patent shows a graph where "Compound 1" (samidorphan) attenuates olanzapine-induced weight gain to a level similar to vehicle control, which a defendant may argue sets a high bar for what the patent teaches as effective "reduction."

VI. Other Allegations

❑ **Indirect Infringement:** The complaint alleges Defendants will actively induce infringement under 35 U.S.C. § 271(b) Compl. ¶185 Compl. ¶195 The basis for this allegation is that Defendants will prepare a prescribing label for their ANDA Product that is "substantively identical to that of LYBALVI®," which will teach, encourage, and instruct healthcare providers and patients to use the product in an infringing manner Compl. ¶185 The complaint also alleges contributory infringement under 35 U.S.C. § 271(c), stating the ANDA Product is especially adapted for an infringing use and has no substantial non-infringing use Compl. ¶186 Compl. ¶189

❑ **Willful Infringement:** The complaint alleges Defendants "are aware, have knowledge of, or are wilfully blind to the fact" that their actions will infringe Compl. ¶187 Compl. ¶188 This allegation of knowledge is based on Defendants' submission of the Paragraph IV certification notice letter and their involvement in the "ongoing Related Action" concerning the same ANDA product Compl. ¶190

VII. Analyst's Conclusion: Key Questions for the Case

1. **Scope of Method Claims:** A central issue will be the applicability of patents with claims directed to specific methods of treatment to a product whose primary indication may differ. For instance, can claims from the '848 patent, directed to treating opioid overdose, be infringed by the intended and labeled use of a product for treating mental illness? This raises a core question of whether infringement can be found absent direct evidence of an accused infringing use.

2. **Claim Construction of "Reducing Weight Gain":** The case will likely involve a significant dispute over the construction of the term "reducing antipsychotic induced weight gain." The key

question for the court will be whether this term requires a specific, clinically significant level of weight mitigation, as suggested by experimental data in the patents, or if any statistically measurable reduction suffices, as broader language in the specification might suggest.

3.Hatch-Waxman Infringement and Labeling: As this is an ANDA litigation, a key evidentiary question will be the comparison of the proposed label for Apotex's generic product with the asserted patent claims. The analysis will turn on whether the instructions and indications for use on the proposed label direct medical professionals and patients to perform the steps of the patented methods, thereby constituting induced infringement.

Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 1 of 20 PageID #: 1 IN THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF DELAWARE BIOGEN MA INC., BIOGEN INC., COLD SPRING HARBOR LABORATORY, and IONIS PHARMACEUTICALS, INC., Plaintiffs, v. SOMERSET THERAPEUTICS, LLC, SOMERSET PHARMA, LLC, SOMERSET THERAPEUTICS PRIVATE LIMITED f/k/a SOMERSET THERAPEUTICS LIMITED, and ODIN PHARMACEUTICALS, LLC, Defendants.))))))))))))))) C.A. No. _____ COMPLAINT Plaintiffs Biogen MA Inc., Biogen Inc. (Biogen MA Inc. and Biogen Inc. together “Biogen”), Cold Spring Harbor Laboratory (“CSHL”), and Ionis Pharmaceuticals, Inc. (“Ionis”) (collectively, “Plaintiffs”), by their attorneys, hereby allege as follows: NATURE OF THE ACTION 1. This is an action for patent infringement under the patent laws of the United States, Title 35, United States Code, that arises out of the submission by defendants Somerset Therapeutics, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited f/k/a Somerset Therapeutics Limited, and Odin Pharmaceuticals, LLC (collectively, “Somerset Defendants”) of Abbreviated New Drug Application (“ANDA”) No. 221418 (“Somerset’s ANDA”) to the U.S. Food and Drug Administration (“FDA”) seeking approval to engage in the commercial manufacture, use, offer for sale, and sale of a generic version of Spinraza® (nusinersen) intrathecal injection, 12 mg/5 mL (“Somerset’s Proposed ANDA Product”). Upon information and belief, if approved by the FDA, Somerset’s Proposed ANDA Product will be 1 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 2 of 20 PageID #: 2 marketed as a competing product to Spinraza®, a product developed and marketed by Biogen for the treatment of spinal muscular atrophy (“SMA”). 2. Biogen previously filed an action in this Court for patent infringement involving Somerset’s ANDA. That action, Biogen MA Inc. et al. v. Somerset Therapeutics, LLC et al., 26- cv-00580-CFC (D. Del.) (“the First Suit”), alleged infringement of U.S. Patent Nos. 9,926,559 (“the ’559 Patent”), 10,436,802 (“the ’802 Patent”), and 12,013,403 (“the ’403 Patent”). The First Suit was filed in response to a letter from Somerset Therapeutics, LLC, received by Biogen on April 10, 2026 (“Somerset’s First Notice Letter”), which notified Biogen that the Somerset Defendants had submitted their ANDA. The First Suit included counts for infringement of the ’559 Patent, the ’802 Patent, and the ’403 Patent. 3. This action is filed in response to a new, second letter from Somerset Therapeutics, LLC to Biogen and CSHL, received by both Biogen and CSHL on June 1, 2026 and dated May 29, 2026 (“Somerset’s Second Notice Letter”), stating that Somerset’s ANDA included Paragraph IV certifications seeking to obtain approval to engage in the commercial manufacture, use, or sale of Somerset’s Proposed ANDA Product before the expiration of U.S. Patent Nos. 8,361,977 (“the ’977 Patent”), 8,980,853 (“the

'853 Patent"), and 9,717,750 ("the '750 Patent") (collectively, "the Asserted Patents"). PARTIES 4. Biogen MA Inc. is a corporation organized and existing under the laws of the Commonwealth of Massachusetts, having a principal place of business at 225 Binney Street, Cambridge, Massachusetts 02142. 5. Biogen Inc. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 225 Binney Street, Cambridge, Massachusetts 02142. 2 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 3 of 20 PageID #: 3 6. CSHL is a New York not-for-profit education corporation chartered by action of the Board of Regents of the State of New York, having a principal place of business at One Bungtown Road, Cold Spring Harbor, NY 11724. 7. Ionis is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 2855 Gazelle Court, Carlsbad, California 92010. 8. On information and belief, Somerset Therapeutics, LLC ("Somerset Therapeutics") is a limited liability company organized and existing under the laws of the State of Delaware, having a principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Somerset Therapeutics has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713. 9. On information and belief, Somerset Pharma, LLC ("Somerset Pharma") is a limited liability company organized and existing under the laws of the State of Delaware, having a principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Somerset Pharma has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713. On information and belief, Somerset Pharma is in the business of, among other things, manufacturing and selling generic versions of branded pharmaceutical products for the United States market, including in this judicial district. 10. On information and belief, Somerset Therapeutics Private Limited f/k/a Somerset Therapeutics Limited ("Somerset Limited") is a corporation organized and existing under the laws of India, having a corporate headquarters at 54/1, Budihal, Nelamangala, Bengaluru 562 123, 3 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 4 of 20 PageID #: 4 Karnataka, India. On information and belief, Somerset Limited plays a role in the production and supply of the Somerset Defendants' generic drug products. 11. On information and belief, Odin Pharmaceuticals, LLC ("Odin") is a limited liability company organized and existing under the laws of the State of Delaware, having its principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Odin has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713. On information and belief, Odin operates as a research and development facility that supports research and development efforts undertaken by the Somerset Defendants with respect to their generic drug products. 12. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin collaborate with respect to the development, manufacturing, regulatory approval, marketing, sale, importation, and/or distribution of generic drug products for sale in the United States, including in Delaware. 13. On information and belief, Somerset Therapeutics, in collaboration with Somerset Pharma, Somerset Limited, and Odin, caused ANDA No. 221418 to be submitted to FDA and seeks FDA approval of ANDA No. 221418. 14. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin acted collaboratively in preparing and submitting ANDA No. 221418 and continue to act collaboratively in pursuing FDA approval of ANDA No. 221418 and seeking to market Somerset's

Proposed ANDA Product in the United States, including in the State of Delaware. 4 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 5 of 20 PageID #: 5 15. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin rely on material assistance from one another to market, distribute, offer for sale, and/or sell generic drugs in the U.S. market, including in the State of Delaware. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin intend to act collaboratively to commercially manufacture, import, market, distribute, offer for sale, and/or sell Somerset's Proposed ANDA Product, in the event FDA approves ANDA No. 221418. JURISDICTION AND VENUE 16. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202. 17. The Court has personal jurisdiction over Somerset Therapeutics because Somerset Therapeutics is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware. 18. The Court has personal jurisdiction over Somerset Pharma because Somerset Pharma is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware. 19. The Court has personal jurisdiction over Odin because Odin is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware. 20. The Court has personal jurisdiction over Somerset Limited because, inter alia, on information and belief, Somerset Limited (1) has purposefully availed itself of the privilege of doing business in Delaware, including directly or indirectly through its related entities (e.g., Somerset Therapeutics, Somerset Pharma, and Odin), and (2) maintains pervasive, continuous, and systematic contacts with the State of Delaware through the marketing, distribution, and sale of generic versions of branded pharmaceutical products in the State of Delaware, directly and through its affiliates, and by deriving substantial revenue from the importation and sale of its products in 5 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 6 of 20 PageID #: 6 the State of Delaware. In the alternative, this Court has personal jurisdiction over Somerset Limited in the State of Delaware under Federal Rule of Civil Procedure 4(k)(2) because Somerset Limited is not subject to jurisdiction in any state's courts of general jurisdiction and exercising jurisdiction over it is consistent with the United States Constitution and laws. 21. In addition, this Court has personal jurisdiction over the Somerset Defendants because, inter alia, the Somerset Defendants have purposefully availed themselves of the benefits and protections of Delaware's laws such that they should reasonably anticipate being haled into court here. Upon information and belief, the Somerset Defendants, themselves and through their subsidiaries, agents, and/or affiliates, develop, manufacture, import, market, offer to sell, sell, and/or distribute a broad range of generic pharmaceutical products throughout the United States, including in Delaware, and therefore transact business within Delaware relating to Plaintiffs' claims, and/or have engaged in systematic and continuous business contacts within Delaware. 22. Furthermore, this Court has personal jurisdiction over the Somerset Defendants because, inter alia, upon information and belief: (1) the Somerset Defendants developed the ANDA product that is the subject of ANDA No. 221418 and submitted ANDA No. 221418 for the purpose of seeking approval to engage in the commercial manufacture, use, sale, or offer for sale in the United States of Somerset's Proposed ANDA Product, including in Delaware; (2) upon approval of Somerset's ANDA, the Somerset Defendants will market, distribute, offer for sale, and sell in the United States, and/or import into the United States, including in Delaware, Somerset's Proposed ANDA Product, and will derive substantial revenue from the use or consumption of Somerset's Proposed ANDA Product in Delaware; and (3) upon approval of Somerset's ANDA, Somerset's Proposed ANDA Product will, among other things, be marketed, distributed, offered for sale, and sold in Delaware, and/or imported into Delaware, prescribed by 6 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 7 of 20 PageID #:

7 physicians practicing in Delaware and administered to patients in Delaware, all of which would have substantial effects in Delaware. By submitting Somerset's ANDA, the Somerset Defendants have shown they will use distribution channels to direct sales of Somerset's Proposed ANDA Product into Delaware. 23. In addition, this Court has personal jurisdiction over the Somerset Defendants because they have committed, aided, abetted, induced, contributed to, or participated in the commission of the tortious act of patent infringement that has led and/or will lead to foreseeable harm and injury to Biogen Inc. and Ionis, both Delaware corporations. 24. In addition, this Court has personal jurisdiction over the Somerset Defendants because they have regularly engaged in patent litigation concerning their ANDA products in this District, including by filing counterclaims in such actions, and have consented to jurisdiction in Delaware in prior cases arising out of the filing of ANDAs. See, e.g., Biogen MA Inc. et al. v. Somerset Therapeutics, LLC et al., C.A. No. 26-580-CFC (D. Del.); Hope Medical Enterprises, Inc. d/b/a Hope Pharmaceuticals v. Somerset Therapeutics, LLC et al., C.A. No. 25-1523-JFM (D. Del.); Astellas Pharma Inc. et al. v. Renata Limited and Somerset Therapeutics, LLC., C.A. No. 25-1383-MN-EGT (D. Del.); Vifor Fresenius Medical Care Renal Pharma Ltd. et al. v. Gland Pharma Limited et al., C.A. No. 25-1382-CFC (D. Del.); AVEO Pharmaceuticals, Inc. v. Somerset Therapeutics, LLC et al., C.A. No. 25-560-MN (D. Del.). 25. Venue is proper in this judicial district under 28 U.S.C. § 1400(b) because Somerset Therapeutics, Somerset Pharma, and Odin are organized under the laws of the State of Delaware and maintain registered agents for service of process in Delaware and therefore reside in Delaware. Venue is proper against Somerset Limited, a foreign corporation, in any judicial district that has personal jurisdiction over it, including in this District, under 28 U.S.C. § 1391(c)(3). 7 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 8 of 20 PageID #:

8 BACKGROUND SPINRAZA® (NUSINERSEN) 26. Spinraza® is a survival motor neuron-2 (SMN2)-directed antisense oligonucleotide indicated for the treatment of spinal muscular atrophy (SMA) in pediatric and adult patients. 27. Biogen Inc. is the holder of approved New Drug Application ("NDA") No. 209531 for Spinraza®, which has been approved by the FDA. 28. The Asserted Patents are listed for NDA No. 209531 for Spinraza® in the FDA's Approved Drug Products with Therapeutic Equivalence Evaluations, commonly known as the "Orange Book." 29. The '977 Patent, titled "Compositions and methods for modulation of SMN2 splicing," was duly and legally issued on January 29, 2013. A copy of the '977 Patent is attached as Exhibit A. 30. Biogen MA Inc. and CSHL are the assignees of the '977 Patent. 31. Plaintiffs hold exclusive rights with respect to the '977 Patent. 32. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '977 Patent. 33. The '853 Patent, titled "Compositions and methods for modulation of SMN2 splicing in a subject," was duly and legally issued on March 17, 2015. A copy of the '853 Patent is attached as Exhibit B. 34. Biogen MA Inc. and CSHL are the assignees of the '853 Patent. 35. Plaintiffs hold exclusive rights with respect to the '853 Patent. 36. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '853 Patent. 8 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 9 of 20 PageID #: 9 37. The '750 Patent, titled "Compositions and methods for modulation of SMN2 splicing in a subject," was duly and legally issued on August 1, 2017. A copy of the '750 Patent is attached as Exhibit C. 38. Biogen MA Inc. and CSHL are the assignees of the '750 Patent. 39. Plaintiffs hold exclusive rights with respect to the '750 Patent. 40. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '750 Patent. 41. This action is being filed within 45 days of Biogen's and CSHL's receipt of Somerset's Second Notice Letter. SOMERSET'S ANDA 42. According to Somerset's Second Notice Letter, ANDA No.

221418 includes a certification pursuant to the Food, Drug, & Cosmetic Act (“FDCA”), 21 U.S.C. § 355(j)(2)(A)(vii)(IV) (“Paragraph IV Certification”), that the Asserted Patents are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, sale, or offer for sale of Somerset’s Proposed ANDA Product. 43. The Somerset Defendants were aware of the Asserted Patents at least as of when ANDA No. 221418 was filed with a Paragraph IV Certification. 44. Upon information and belief, nusinersen is the active ingredient in Somerset’s Proposed ANDA Product. 45. Upon information and belief, ANDA No. 221418 refers to and relies upon NDA No. 209531 for Spinraza® and contains data that, according to the Somerset Defendants, demonstrate bioequivalence of Somerset’s Proposed ANDA Product and Spinraza®, see 21 U.S.C. § 355(j)(2); 21 C.F.R. § 314.94(a)(7), or the Somerset Defendants have sought a waiver of the 9 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 10 of 20 PageID #: 10 requirement to demonstrate bioequivalence of Somerset’s Proposed ANDA Product and Spinraza®. 46. Upon information and belief, the label for Somerset’s Proposed ANDA Product (“Somerset’s Proposed Label”) will be substantially identical to the Spinraza® label. Upon information and belief, the Somerset Defendants intend to have healthcare professionals administer Somerset’s Proposed ANDA Product, if approved, as set forth in Somerset’s Proposed Label for this ANDA product. Upon information and belief, Somerset’s Proposed Label will instruct healthcare professionals to prescribe and administer Somerset’s Proposed ANDA Product in the manner set forth in Somerset’s Proposed Label. COUNT I (Infringement of the ’977 Patent) Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein. 48. Claim 19 of the ’977 Patent covers “[a]n antisense oligonucleotide having a 47. nucleotide sequence 100% complementary to a target region of SEQ ID NO: 1 as measured over the entirety of the antisense oligonucleotide, wherein: the 5'-most nucleotide of the target region is nucleotide 124 of SEQ ID NO: 1; the antisense oligonucleotide is 12 to 20 nucleotides in length; and each nucleoside of the antisense oligonucleotide comprises a 2'-O-methoxyethyl sugar modification.” 49. Upon information and belief, Somerset’s Proposed ANDA Product is covered by one or more of the claims of the ’977 Patent, including at least claim 19. 50. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Somerset’s Proposed ANDA Product will infringe one or more claims of the ’977 Patent, including at least claim 19, either literally or under the doctrine of equivalents.

Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the ’977 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset’s Proposed ANDA Product.

52. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset’s Proposed ANDA Product prior to the expiration of the ’977 Patent.

53. The Somerset Defendants’ submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset’s Proposed ANDA Product prior to the expiration of the ’977 Patent was an act of

infringement of the '977 Patent under 35 U.S.C. § 271(e)(2)(A).

54. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, i.e., prior to the expiration of the '977 Patent, in violation of 35 U.S.C. § 271(a).

55. Upon information and belief, the Somerset Defendants have had knowledge of the '977 Patent at least because the '977 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Somerset's Second Notice Letter references the '977 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation

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of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

56. Upon information and belief, the Somerset Defendants plan and intend to, and will, actively induce infringement of the '977 Patent when ANDA No. 221418 is approved, and will do so with specific intent to induce infringement of the '977 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so immediately and imminently upon approval.

57. Upon information and belief, the Somerset Defendants know that Somerset's Proposed ANDA Product is especially made or adapted for use in patented methods of the '977 Patent, and that Somerset's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the '977 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

58. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the '977 Patent, active inducement of infringement of the '977 Patent, and contribution to the infringement by others of the '977 Patent, either literally or under the doctrine of equivalents.

59. Unless the Somerset Defendants are enjoined from infringing the '977 Patent, actively inducing infringement of the '977 Patent, and contributing to the infringement by others

of the '977 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT II

(Infringement of the '853 Patent)

60.

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

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61. Claim 1 of the '853 Patent covers “[a] method comprising administering by a bolus injection into the intrathecal space of a subject with infantile-onset type I spinal muscular atrophy (SMA) an antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1, wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein the administering of the antisense compound ameliorates at least one symptom of SMA in the subject.”

62. Upon information and belief, Somerset's Proposed ANDA Product and its use are covered by one or more of the claims of the '853 Patent, including at least claim 1.

63. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Somerset's Proposed ANDA Product, and/or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, will infringe one or more claims of the '853 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

64. Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '853 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset's Proposed ANDA Product.

65.

Somerset Therapeutics did not contend in Somerset's Second Notice Letter that Somerset's Proposed ANDA Product, or the use of Somerset's Proposed ANDA Product in

accordance with and as directed by Somerset's Proposed Label for that product, would not infringe the '853 Patent.

66. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '853 Patent.

67. The Somerset Defendants' submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '853 Patent was an act of infringement of the '853 Patent under 35 U.S.C. § 271(e)(2)(A).

68. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, i.e., prior to the expiration of the '853 Patent, in violation of 35 U.S.C. § 271(a).

69. Upon information and belief, the Somerset Defendants have had knowledge of the '853 Patent at least because the '853 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Somerset's Second Notice Letter references the '853 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

70. Upon information and belief, the Somerset Defendants plan and intend to, and will, actively induce infringement of the '853 Patent when ANDA No. 221418 is approved, and will do

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so with specific intent to induce infringement of the '853 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so immediately and imminently upon approval.

71. Upon information and belief, the Somerset Defendants know that Somerset's Proposed ANDA Product is especially made or adapted for use in patented methods of the '853 Patent, and that Somerset's Proposed ANDA Product is not suitable for substantial noninfringing

use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the '853 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

72. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the '853 Patent, active inducement of infringement of the '853 Patent, and contribution to the infringement by others of the '853 Patent, either literally or under the doctrine of equivalents.

73. Unless the Somerset Defendants are enjoined from infringing the '853 Patent, actively inducing infringement of the '853 Patent, and contributing to the infringement by others of the '853 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT III

(Infringement of the '750 Patent)

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

75. Claim 1 of the '750 Patent covers “[a] method comprising administering by a bolus

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injection into the intrathecal space of a human subject having type II spinal muscular atrophy (SMA) an antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase

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sequence SEQ ID NO: 1, wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein the administering of the antisense compound ameliorates at least one symptom of SMA in the human subject.”

76. Upon information and belief, Somerset's Proposed ANDA Product and its use are covered by one or more of the claims of the '750 Patent, including at least claim 1.

77. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Somerset's Proposed ANDA Product, and/or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, will infringe one or more claims of the '750 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

78. Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '750 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset's Proposed ANDA Product.

79.

Somerset Therapeutics did not contend in Somerset's Second Notice Letter that Somerset's Proposed ANDA Product, or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, would not infringe the '750 Patent.

80. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '750 Patent.

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81. The Somerset Defendants' submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '750 Patent was an act of infringement of the '750 Patent under 35 U.S.C. § 271(e)(2)(A).

82. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, i.e., prior to the expiration of the '750 Patent, in violation of 35 U.S.C. § 271(a).

83. Upon information and belief, the Somerset Defendants have had knowledge of the '750 Patent at least because the '750 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Somerset's Second Notice Letter references the '750 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

84. Upon information and belief, the Somerset Defendants plan and intend to, and will,

actively induce infringement of the '750 Patent when ANDA No. 221418 is approved, and will do so with specific intent to induce infringement of the '750 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so immediately and imminently upon approval.

85. Upon information and belief, the Somerset Defendants know that Somerset's Proposed ANDA Product is especially made or adapted for use in patented methods of the '750
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Patent, and that Somerset's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the '750 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

86. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the '750 Patent, active inducement of infringement of the '750 Patent, and contribution to the infringement by others of the '750 Patent, either literally or under the doctrine of equivalents.

87. Unless the Somerset Defendants are enjoined from infringing the '750 Patent, actively inducing infringement of the '750 Patent, and contributing to the infringement by others of the '750 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

REQUEST FOR RELIEF

WHEREFORE, Plaintiffs request the following relief:

- (a) A judgment that the Somerset Defendants have infringed the Asserted Patents under 35 U.S.C. § 271(e)(2)(A);
- (b) A judgment pursuant to 35 U.S.C. § 271(e)(4)(A) ordering that the effective date of any FDA approval for the Somerset Defendants to make, use, offer for sale, sell, market, distribute, or import Somerset's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, be not earlier than the latest expiration date among the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;
- (c) A permanent injunction pursuant to 35 U.S.C. § 271(e)(4)(B) enjoining the Somerset Defendants, and all persons and entities acting in concert with the Somerset Defendants, from making, using, selling, offering for sale, marketing, distributing, or importing Somerset's

Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, or the inducement of or contribution to any of the foregoing, prior to the expiration date of the latest-expiring of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(d) A judgment declaring that making, using, selling, offering for sale, marketing, distributing, or importing of Somerset's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, prior to the expiration date of the latest-expiring of the Asserted Patents, infringes, will infringe, will actively induce infringement of, and/or will contribute to the infringement by others of the Asserted Patents under 35 U.S.C. §§ 271(a), (b) and (c);

(e) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if the Somerset Defendants engage in making, using, selling, offering for sale, marketing, distributing, or importing of Somerset's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, or induces or contributes to such conduct, prior to the expiration date of the latest-expiring of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(f) A finding that this is an exceptional case and an award of attorneys' fees pursuant to 35 U.S.C. § 285;

(g) An award of Plaintiffs' costs and expenses in this action; and

(h)

Such further and other relief as this Court may deem just and proper.

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